



Participant must be provided with the Special Tax Notice Regarding Plan Payments.

INSTRUCTIONS

The Termination Form is used to process Plan distributions due to a participant's termination of employment (due to retirement, disability, and in the event of Plan termination). All sections must be completed in full for your request to be processed.

STEP 1 Participant Information

Please print and complete this section in full.

STEP 2 Reason for Distribution

Check **one** box as the reason for distribution and enter the termination date (this will be the date that your employment with your employer terminated or the date your employer terminated the Plan. Check with your Plan Administrator if you do not know this date). If you checked Disability as a Reason for Distribution, see your Summary Plan Description to determine if you meet the Plan's definition of disability; and, if you have Roth 401(k) money in the Plan, also see Note on "Roth Disability" in Step 3.

STEP 3 Funds Disbursement Election

Check **one** box (A, B, or C) to identify how you want to be paid and make the applicable elections within each section.

- If you request a 100% cash distribution, you will receive one check payable to you.
- If you request a 100% Rollover, you will receive one check payable to the Institution or Trustee that you indicate on this Form in Step 4.
- If you request a portion of the distribution to be rolled over and a portion to be paid to you in cash, you will receive 2 checks: one payable to the Rollover Institution/Trustee and one payable to yourself.
- If you elect to Rollover your taxable amounts and receive a cash distribution of the remaining non-taxable amounts, but your Roth distribution doesn't qualify as a qualified Roth distribution (see below), you will receive 3 checks: one check consisting of your pre-tax amounts for you to rollover to a pre-tax account, one consisting of your Roth earnings for you to rollover to a Roth account and a third separate check to you in cash for your Roth (and after-tax, if any) contributions.

Note: The "Partial Distribution" and "Installments" options are not available if the reason for your distribution is the termination of the Plan or your account balance (excluding any rollover account under the Plan) is \$5,000 or less. Any outstanding loan balance will become taxable upon a full or partial distribution.

Please read the Special Tax Notice for information about rollovers, tax withholding, the early distribution penalty, qualified Roth distributions and other important matters that may affect your distribution. ADP cannot provide legal or tax advice and nothing on the Form or Instructions should be construed as tax or legal advice.

Part or all of your distribution will be taxable unless your distribution qualifies as a Qualified Roth Distribution. You may elect to rollover just your pre-tax amount and receive any after-tax, if any, as a cash distribution.

Note on Qualified Roth Distributions - Whether your withdrawal from a Roth account is entirely tax-free or whether the earnings are taxable depends on whether the distribution meets the requirements under the Internal Revenue Code for a qualified Roth distribution. A qualified Roth distribution is a payment made after you are age 59½ (or your death or disability) and after you have had a Roth account in the Plan for at least 5 years. In applying the 5-year rule, count from January 1 of the year your first contribution or rollover was made to the Roth accounts under the Plan or if you had a prior direct rollover of a Roth account from another employer plan, count from January 1 of the year of your first Roth contribution or Roth rollover to this prior employer plan.

Plan Records Must Show 5 Year Rule Satisfied - If the Plan's records, as recorded at ADP, do not indicate your Roth distribution is a qualified Roth distribution (i.e., reflect that you have 5 years of Roth 401(k) participation and/or your distribution is not on account of death, disability, or attainment of age 59½), earnings on your distribution from the Roth 401(k) account under the Plan will be taxable and subject to the mandatory 20% federal income tax withholding to the extent the distribution is paid to you and is not directly rolled over.

Note on Roth Disability - If you checked disability as your Reason for Distribution in Step 2, you must meet the definition of Roth Permanent Disability in Step 4B of the Termination Form, in addition to the other qualified Roth distribution requirements, in order for your distribution to be a qualified Roth distribution. **Note:** The Roth disability definition may be different than the Plan's definition of disability.

STEP 4 Rollover Information

If you requested a Rollover in Step 3, complete section A and/or B in Step 4. Select the type of account to which the Rollover will be made and complete the Name of the Rollover Institution/Trustee to which the check should be made payable. **Note:** If you are rolling over a distribution to another employer plan, please check with the plan administrator of such plan on specific requirements needed to make the rollover and the specific types of money that the employer plan will accept.

Note on Direct Rollovers of Pre-tax Amounts to a Roth IRA: Direct rollovers are not subject to mandatory federal tax withholding. Therefore, ADP will not withhold any federal tax amount on any direct rollovers, including direct rollovers of pre-tax amounts to a Roth IRA which must be included in your taxable income. **Therefore, you should make sure you are able to pay all required income taxes in connection with such a rollover. You are strongly encouraged to consult with your tax advisor before making your election.**

STEP 5 Participant Acknowledgement and Signature

Read the acknowledgment then sign and date the form.

STEP 6 Return to Your Former Employer or This Form WILL NOT BE PROCESSED.

The Plan Administrator Approval/Signature, date and Recordkeeping Plan # are required.

TERMINATION FORM



STEP 1 Participant Information (Please Print and Complete This Section in Full)

Phone # 585-424-0055

Social Security # 052-72-1216

Employee Name (Last) Frank (First) Peter (Middle Initial) D

Address (Street) 340 Haley Rd (Apt. # / PO Box#)

(City) Ontario (State) NY (Zip Code) 14519

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STEP 2 Reason for Distribution (Please check one box only and enter date.)

☒ Employment Termination or Resignation

Termination Date: 7-30-2021

☐ Retirement

MM/DD/YYYY

☐ Disability (see Roth Disability in Step 4 below if you have a Roth account under the Plan)

☐ Plan Termination by Employer

STEP 3 Funds Disbursement Election (Select A, B or C; if a Rollover is selected, also complete Step 4)

A. ☒ Total Distribution (select one of the following)

☒ Pay me 100% of my account balance in a cash distribution

☐ Rollover 100% of my account balance (Complete Step 4)

☐ Rollover \$ (and check one)

from my non-Roth source(s) from Roth source(s) and pay the remainder to me in a cash distribution
(Complete Step 4) (taxable amounts will be rolled over before any non-taxable amounts)

☐ Rollover all of my pre-tax amounts (Roth and non-Roth) pay me any nontaxable amounts in a cash distribution (Complete Step 4)

OR

B. ☐ Partial Distribution Distribute a portion of my vested account balance and leave the remaining balance in the Plan.

(A Partial Distribution is not available if the Plan Sponsor is terminating the Plan.) Specify the dollar amount to be distributed which is less than 100% of your account balance in the Plan, a payment option, and select a money type/source (if desired):

Partial Distribution Amount: \$

Payment Option: (select one)

☐ Pay me 100% of the Partial Distribution Amount in a cash distribution (select money type below if desired)

☐ Rollover 100% of the Partial Distribution Amount (Complete Step 4) (select money type below if desired)

☐ Rollover \$ (and check one)

from my non-Roth source(s) from Roth source(s) and pay the remainder to me in a cash distribution, up to the Partial Distribution Amount (Complete Step 4) (taxable amounts will be rolled over before any non-taxable amounts) (do not select money type below)

Money Type Election: Your Partial Distribution (both Rollover and cash) will be withdrawn proportionally from all of your money types unless you limit the Partial Distribution to the following money type(s) by checking one or more boxes below:

☐ Roth 401(k) (Roth elective deferrals and earnings)

☐ Roth Rollover (Roth Rollover including earnings and In-Plan Roth Rollovers including earnings)

☐ Pre-tax Rollover (Pre-tax Rollover money and earnings)

☐ After-tax (non-Roth after-tax money and earnings)

Note: If the type of money selected is not sufficient to cover the distribution amount, then the amount processed will be reduced to the maximum amount available for that money type(s).

OR

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- C. ☐ **Installments** Distribute my vested account balance to me in the form of periodic payments. Only available if your vested account balance excluding any rollover account exceeds \$5,000. Not available if the Plan Sponsor is terminating the Plan. Please contact your Plan Administrator if you would like your installments direct deposited. The number of payments may not exceed your life expectancy, or the joint life expectancy of you and your beneficiary. Fill in your elections below:

Installment Payment Start Date (MM/DD/YYYY): _____

Number of payments: _____ OR Payment Amount: _____

Frequency of Payments (Select One): ☐ Monthly ☐ Quarterly ☐ Semi-annually ☐ Annually

I understand that mandatory 20% Federal Income Withholding tax will apply (and any mandatory state tax withholding may apply) to the taxable portion of my distribution, including any installments payable for a period of less than 10 years. If I elect installment payments for 10 or more years, federal withholding may apply, unless I elect to have no withholding apply.

Note: Regardless of your election, you will remain liable for any federal income tax on the distribution amount. You may also be subject to penalties under the federal estimated tax payment rules if your tax payments and withholding amounts are not sufficient.

☐ Check here if installment payments will be made for 10 years or more and you elect no withholding

STEP 4 Rollover Information (Select destination for your Direct Rollover)

Complete Section A for a Direct Rollover of your Non-Roth 401(k) amounts.

Complete Section B for a Direct Rollover of your Roth 401(k) accounts if applicable.

- A. **Non-Roth 401(k) amounts:** Select the type of account and fill in the name of the institution/trustee to which your Direct Rollover of non-Roth amounts will be made:

☐ Traditional IRA

☐ Roth IRA (Pre-tax amounts will be included in your taxable income; see Instructions)

☐ Employer Plan (Qualified Plan, 403(a) Qualified Annuity, 457 Plan, or 403(b) Tax-Sheltered Annuity)

Make Check Payable to (Fill in Name of Institution / Trustee): _____

NOTE: Pre-tax amounts in your account balance are included in your Direct Rollover before any after-tax amounts. "After-tax" means only the amount in your account which was taxed before it was contributed but does not include Roth amounts.

- B. **Roth 401(k) accounts:** Select the type of account and fill in the name of the institution/trustee to which your Direct Rollover of Roth amounts will be made:

☐ Roth IRA

☐ Employer Plan (Qualified Plan, 403(a) Qualified Annuity, 457 Plan, or 403(b) Tax-Sheltered Annuity)

Make Check Payable to (Fill in Name of Institution / Trustee): _____

- ☐ **Roth Disability:** Check here if (i) you checked Disability as the Reason for Distribution in Step 2 and (ii) you meet the following requirements of a Roth Permanent Disability – you are unable to engage in any substantial gainful activity by reason of any medically determinable physical or mental impairment which can be expected to result in your death or to be of long-continued and indefinite duration.

STEP 5 Participant Acknowledgement and Signature

I hereby authorize the distribution of funds from my account according to the directions identified above. I understand that there may be certain penalties, transaction fees and/or taxes due. By signing this form, I certify that within the last 180 days I have received a notice describing the tax consequences of my distribution options and the material features of the optional forms of payment available under the Plan. I am aware that I may have the right under the Plan to defer distribution if my account balance exceeds the Plan's cashout limit. I am aware that the Internal Revenue Service recommends that I take 30 days to consider my distribution options; however, by returning this signed form prior to the expiration of the 30-day period, I hereby waive the 30-day waiting period. Further, I certify that no portion of the benefits to which I am entitled from the Plan is subject to a qualified domestic relations order which would affect the payment of any benefits from the Plan. I understand that there may be penalties and/or taxes due depending upon my particular circumstances.

Signature of Employee/Participant _____

8-16-2021

Date _____

STEP 6 Return Form to Your Employer or This Form WILL NOT BE PROCESSED

Plan Administrator Approval/Signature: _____ Date: _____

Recordkeeping Plan #: _____

Plan Administrator should fax completed and approved form to: 1-973-712-7489